

53.	Singh v. Parkside Property Owners Association 2026-01539180	Petitioner Kulwinder Singh's motion for reconsideration of the court's March 13, 2026 order denying a preliminary injunction is DENIED. Petitioner brings this motion under C.C.P. § 1008 which governs motions for reconsideration and requires that such motions be based on "new or different facts, circumstances, or law." A motion for reconsideration must be supported by proper declarations establishing these new facts or changed circumstances. Petitioner in substance argues that he has satisfied § 1008 because a technical issue caused the omission of the declaration of Oleksandr Mykhailonok at the time of the March 13, 2026 hearing. Petitioner claims the omission was prejudicial to the outcome of the motion. However, at the hearing of March 13, 2026 the court stated that the missing declaration would not have aided petitioner, as (as summarized) it was hearsay. The premise of plaintiff's argument is that Fei was removed (as opposed to resigning) from defendant's board. However, plaintiff has not submitted persuasive evidence in support of this point. Plaintiff referenced a declaration that is not in the court's file. But even accepting plaintiff's summary of the declaration, it would be hearsay. March 13, 2026 Minute Order, ROA 55, (emphasis added.) Hearsay statements are not evidence. Having looked at the two declarations of Oleksandr Mykhailonok submitted with the current motion, the court concludes the same: these are hearsay—out of court statements of Fei being offered for the truth of the matter asserted (that Fei was forced to resign). In short, the evidence submitted by petitioner is not new. But even considering the declarations, it does not change the court's analysis, and therefore does not change the outcome of the request for a preliminary injunction. See <i>Yuzon v. Collins</i>, (2004) 116 Cal.App.4th 149 (the trial court denied a motion for reconsideration, finding that the declaration "failed to constitute new evidence warranting reconsideration, and even if the declaration constituted new evidence, it failed to provide a basis to change the court's ruling."). See also <i>Wiz Technology, Inc. v. Coopers & Lybrand</i>, (2003) 106 Cal.App.4th 1, 17 ("Wiz failed to meet its burden under Code
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		of Civil Procedure section 1008, because the declarations did not provide any basis for reconsideration.”) In other places in the motion (pgs. 5-6), petitioner cites to events from May 2025, June 2025, and September 2025, but fails to identify why these items that predated the March 13, 2026 hearing were not included in the original motion. The court finds there is no basis under C.C.P. § 1008 to reconsider its ruling of March 13, 2026. As a result, petitioner’s motion is DENIED. The court confirms that the hearing on the Petition (ROA 2) will be on August 14, 2026 at 9:30 a.m. in Department C28. Petitioner’s opening brief shall be filed no later than July 17, 2026. Respondent’s opposition brief shall be filed no later than July 31, 2026. Petitioner’s reply brief shall be filed no later than August 7, 2026. (ROA 76, 77) Respondent shall give notice of this ruling.
54.	Pacheco v. Guardian Storage Centers, LLC 2025-01535561	Defendants Guardian Storage Centers, LLC and StorAmerica Management, LP’s motion to strike portions of first amended complaint is GRANTED with 10 days leave to amend as to the words “and punitive damages” in paragraph 82 only, and otherwise DENIED. <u>Paragraphs 53, 63, 73, 101, 106 & the prayer for relief at item/paragraph 3.</u> The pertinent portions of paragraphs 53, 63, 73, 101, and 106 appear under the third, fourth, fifth, eighth, and ninth causes of action for retaliation for taking pregnancy disability leave, pregnancy discrimination, disability discrimination, failure to prevent retaliation and discrimination, and wrongful termination in violation of public policy, respectively. The prayer for relief at item/paragraph 3 seeks punitive damages under the “[t]hird, [f]ourth, [f]ifth, and [n]inth [c]auses of [a]ction....” (See Compl. at p. 26, ll. 10-13.) The first amended complaint (FAC) alleges sufficient facts in support of “malice” for punitive damages under each of these causes of action. (See Civ. Code, § 3294, subds. (a), (b), (c)(1); FAC ¶¶ 17-18, 48-51, 58-61, 80, 94-99, 153-160 [defendants terminated plaintiff’s employment based in part on the fact that she took protected pregnancy disability leave and then attempted to hide their illegal motive under the false pretext of “business needs”]; see also <i>id.</i> ¶¶ 15, 16, 22, 46, 53, 54, 63, 64, 99 [acting through managing agent Bobby Piccio].)